

Amir Hamza

Versus

The State etc.

12.03.2019 Rai Bashir Ahmad, Advocate for the petitioner.
Syed Tayyab Mehmood Jafari, Advocate for the
complainant.
Mr. Tariq Javed, District Public Prosecutor.
Saif Ullah, S.I with record.

Having failed to get the post arrest bail in case FIR No.148 dated 02.02.2017, registered under Sections 302, 109 and 34 PPC at Police Station South Cantt, District Lahore from the Court of learned Additional Sessions Judge, Lahore vide order dated 19.09.2017 the petitioner seeks the same relief through this petition.

2. Muhammad Irfan complainant of the FIR put the machinery of law into motion while lodging the crime report alleging therein that the petitioner along with other co-accused persons in furtherance of their common intention committed murder (qatl-e-amd) of deceased Muhammad Adnan brother of the complainant on the abetment of co-accused Dr. Riaz in the backdrop of the motive that there was a scuffle between the present petitioner Amir Hamza with the deceased Adnan, 2/3 days prior to the present occurrence.

3. After hearing the learned counsel for the parties and perusing the record it evinced that the present petitioner is nominated in the FIR with the specific allegation that he

while armed with pistol made successive fire shots on person of the deceased who succumbed to the injuries on the way to hospital. The record of the case showed that though the other accused persons were also nominated in the FIR but the petitioner is only accused who has been attributed injury on person of the deceased. The postmortem report showed the firearm injury on person of the deceased. The crux of arguments of the learned counsel for the petitioner is that there is a conflict between the ocular and postmortem report as the complainant while lodging the FIR has specifically stated that the deceased received injuries at his neck and wrist whereas during the postmortem report the doctor has not observed any injury on neck of the deceased. In this regard the court is mindful of the fact that the arguments regarding conflict between the medical evidence and ocular account cannot be appreciated without deeper appraisal of evidence, which is not warranted at bail stage. Reliance is placed in this regard on the judgment passed by Hon'ble Supreme Court of Pakistan in case of Mumtaz v. The State (2012 SCMR 556) and in the case of Mst. Irshad Begum v. Muhammad Afzal and others (1985 SCMR 1691). The Hon'ble Supreme Court of Pakistan in case of Mumtaz vs. The State (supra) observed as under:-

“There is no cavil to the proposition and the ratio laid down in the afore-referred precedent case law. However, having gone through the F.I.R and the allegations levelled against the petitioner, prima facie, he is connected with the alleged offence and the argument qua the conflict between medical evidence and the ocular account cannot be appreciated without a deeper appraisal of evidence which is not warranted at bail stage.”

4. Even otherwise, ample evidence is available in the instant case in the shape of statements of eye witnesses namely, Noman and Nabeel recorded under Section 161

Cr.P.C. The petitioner was arrested in this case on 14.03.2017 and during the course of investigation he got recovered pistol 30 bore and the same was sent to the PFSA for analysis with the crime empties allegedly secured from the place of occurrence and the said pistol was found wedded with two crime empties. Even otherwise, he has found involved in the alleged crime during the investigation. The challan has already been submitted and the trial is in progress.

5. For what has been discussed above, I do not find any merits in the instant petition, which is accordingly dismissed.

(Muhammad Waheed Khan)
Judge.

Approved for reporting.

Judge.

Ansar*